
BEFORE THE IOWA BOARD OF SOCIAL WORK

Re:	)	CASE NO. 15-0178
Social Work Independent Level License of	)	
	)	SETTLEMENT AGREEMENT
MARCI DOUTY	)	AND FINAL ORDER
License No. 007008	)	
Respondent.	)	

Pursuant to Iowa Code sections 17A.12(5) and 272C.3(4) (2015), and 645 IAC 12, the Iowa Board of Social Work ("Board") and Marci Douty ("Respondent") enter into the following Settlement Agreement and Final Order ("Order") to settle a contested case currently pending before the Board.

The allegations contained in the Statement of Charges against Respondent shall be resolved without proceeding to hearing, as the Board and Respondent stipulate as follows:

1. The Board filed a Notice of Hearing and Statement of Charges on August 10, 2015.
2. The Board has jurisdiction over the parties and the subject matter of these proceedings.
3. Respondent admits the allegations in the Statement of Charges and acknowledges that the allegations, if proven in a contested case proceeding, would constitute grounds for the discipline agreed to in this Order.
4. Execution of this Order constitutes the resolution of a contested case. Respondent has a right to hearing before the Board on the charges, but Respondent waives the right to hearing and all attendant rights, including the right to appeal or seek judicial review of the Board's actions, by freely and voluntarily entering into this Order. Once entered, this Order shall have the force and effect of a disciplinary order entered following a contested case hearing.
5. Respondent acknowledges that she has the right to be represented by counsel on this matter.
6. Respondent agrees that the State's counsel may present this Order to the Board and may have *ex parte* communications with the Board while presenting it.
7. This Order is subject to approval by a majority of the full Board. If the Board does not approve this Order, it shall be of no force or effect to either party, and shall not be admissible for any purpose in further proceedings in this matter. If the Board approves this Order, it shall be the full and final resolution of this matter.
8. This Order shall be part of Respondent's permanent record and shall be considered by the Board in determining the nature and severity of any disciplinary action to be imposed in the event of any future violations.
9. This Order shall not be binding as to any new complaints received by the Board.

10. Respondent understands the Board is required by federal law to report any adverse action to the National Practitioner Data Bank.

11. This Order, when fully executed, is a public record and is available for inspection and copying in accordance with the requirements of Iowa Code chapters 22 and 272C.

12. The Board's approval of this Order shall constitute a FINAL ORDER of the Board.

IT IS THEREFORE ORDERED:

13. Respondent's license shall be placed on **PROBATION** for a minimum period of two (2) years, subject to the following terms and conditions:

- a. Respondent shall complete two (2) years of monitored practice before being released from probation. Prior to beginning practice monitoring, Respondent shall submit a proposed practice monitor and practice monitoring plan to the Board for approval. The proposed practice monitor shall be an Iowa licensed independent social worker. Practice monitoring shall commence upon Board approval of the monitor and the plan. Respondent shall provide the practice monitor with a copy of the Notice of Hearing and Statement of Charges as well as this Settlement Agreement. Respondent's practice monitor shall perform an initial review of Respondent's practice with the goal of identifying potential areas for improvement. After the initial review meeting, Respondent shall meet in a face-to-face setting with the practice monitor on a quarterly basis during the probation period to review and discuss the Board's rules on ethics, billing, and recordkeeping; hypothetical ethical, billing, and recordkeeping issues; and ethical, billing, and recordkeeping issues that arise in Respondent's practice. Respondent's practice monitor shall submit quarterly reports to the Board describing the dates of meetings held with Respondent, a summary of the discussion held at each meeting, the practice monitor's recommendations for further mentoring and monitoring, if any, and any other information the practice monitor deems relevant for the Board's review. Said quarterly reports are due on January 5, April 5, July 5, and October 5 of each calendar year during the probationary period. Respondent is responsible for all costs associated with practice monitoring and for ensuring the quarterly reports from the practice monitor are timely submitted.
- b. Within six (6) months of Board approval of this Settlement Agreement, Respondent shall pay a civil penalty in the amount of two hundred fifty dollars (\$250). This civil penalty shall be made payable to the Treasurer of Iowa. All civil penalty payments shall be deposited into the State of Iowa general fund.
- c. Within twelve (12) months of Board approval of this Settlement Agreement, Respondent shall complete nine (9) hours of continuing

education in ethics and nine (9) hours of continuing education in billing and/or recordkeeping. Respondent shall submit certificates to the Board as proof of completion of this requirement. These hours are in addition to the standard continuing education requirements for license renewal and cannot be used to satisfy the required hours or ethics requirement for license renewal. Respondent is responsible for all costs associated with obtaining the required continuing education. Respondent may use any continuing education hours obtained after the commencement of this contested case to satisfy this requirement.

- d. Respondent shall obey all federal and state statutes and regulations governing the practice of social work.

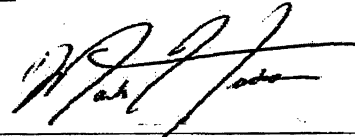
14. The civil penalty should be mailed to the Iowa Board of Social Work, Attn: Tony Alden, Bureau of Professional Licensure, Iowa Department of Public Health, Lucas State Office Building—5th Floor, 321 East 12th St., Des Moines, IA 50319. The other documentation required to be submitted under paragraph 13 may be sent via mail to the preceding address, or may be sent via email to Tony Alden at Tony.Alden@idph.iowa.gov.

15. Should Respondent violate the terms of this Order, the Board may initiate action to impose other licensee discipline as authorized by Iowa Code chapters 147, 154C, and 272C and 645 IAC 13 and 283.

This Settlement Agreement and Final Order is voluntarily submitted by Respondent to the Board for its consideration on the 5 day of Feb, 2016.


MARCI DOUTY
Respondent

This Settlement Agreement and Final Order is approved by the Iowa Board of Social Work on the 8th day of February, 2016.


Chairperson
Iowa Board of Social Work

Copies to:

Laura Steffensmeier
Assistant Attorney General
Licensing & Administrative Law Division
Iowa Department of Justice
Hoover Building, 2nd Floor
Des Moines, IA 50319
ATTORNEY FOR THE STATE

Timothy McCarthy, II
McCARTHY & HAMROCK, P.C.
1200 Valley West Drive, Ste. 400
West Des Moines, IA 50266
ATTORNEY FOR RESPONDENT